



Cumberland River Authority Act 1971

CHAPTER xvi

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An Act to provide as a temporary measure for the augmentation of the flow of the river Derwent by abstraction from Bassenthwaite Lake; to authorise the Cumberland River Authority to construct works and acquire lands; and for other purposes. [30th March 1971]

WHEREAS the Cumberland River Authority (hereinafter referred to as "the River Authority") were constituted in pursuance of the Water Resources Act, 1963 (hereinafter 1963 c. 38. referred to as "the Act of 1963"), as the authority responsible for water conservation, land drainage, prevention of pollution and the management and improvement of salmon, trout and fresh-water fisheries within an area which includes the greater part of the administrative county of Cumberland:

And whereas as the authority responsible for water conservation within their area the River Authority are charged by the Act of 1963 with the duty of taking such action as they consider necessary or expedient for the purpose (inter alia) of augmenting the water resources in their area:

And whereas the demand for water within that part of the area of the River Authority known as West Cumberland has increased and will further increase and, moreover, West Cumberland being a development area, it is the duty of the River Authority to ensure that there are adequate supplies of water in that area to meet the growth of existing industries and to facilitate the introduction of new industry:

And whereas, taking into account the requirements of the rivers in the West Cumberland area and the River Authority's responsibilities therefor, the water resources, as at present developed, are not sufficient to meet the future requirements of consumers, including in particular those of existing and anticipated industrial consumers:

And whereas a substantial increase of the existing water resources cannot be effected without the development of new sources of considerable magnitude but no such source can be developed in time to meet immediate requirements:

And whereas it is expedient and in the public interest that to meet such requirements and as a temporary measure the River Authority should be empowered by means of the works by this Act authorised to augment the flow of the river Derwent by abstracting from Bassenthwaite Lake as in this Act provided so to ensure that in periods of low flow there is a sufficient quantity of water in the river available for abstraction by the West Cumberland Water Board and other interests who are or may be authorised to take water therefrom:

And whereas it is expedient that the River Authority should be empowered to acquire lands and easements for the works which they are by this Act authorised to construct:

And whereas to enable the River Authority to discharge their statutory functions with greater efficiency it is expedient that they should be granted the additional powers conferred upon them by this Act:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines, situations and levels of the works authorised by this Act, and a book of reference to such plans containing the names of the owners and lessees, or reputed owners and lessees, and of the occupiers of the lands which may be acquired or used compulsorily under the powers of this Act, have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office, House of Commons, and with the clerk of the county council of the administrative county of Cumberland, which plans, sections and book of reference are in this Act respectively referred to as the deposited plans, the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and

with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

1. This Act may be cited as the Cumberland River Authority Short title.
Act 1971.

2. This Act shall be divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Works.

Part III.—Lands.

Part IV.—Abstractions and discharges.

Part V.—Finance.

Part VI.—Special provisions.

Part VII.—Miscellaneous and general.

3.—(1) In this Act, unless the subject or context otherwise Interpretation.
requires—

“ the Act of 1961 ” means the Land Compensation Act, 1961; 1961 c. 33.

“ the Act of 1963 ” means the Water Resources Act, 1963; 1963 c. 38.

“ the Act of 1965 ” means the Compulsory Purchase Act,
1965; 1965 c. 56.

“ the authorised works ” means the works authorised by this
Act and any works, apparatus and conveniences con-
nected therewith constructed or provided by the River
Authority as part of, or in connection with, or for the
purposes of, those works or any of them;

“ the lake ” means Bassenthwaite Lake;

“ land ” means any corporeal hereditament, including a
building, and includes any interest in, or right over,
land;

“ new functions ” has the meaning assigned to that expression
by subsection (5) of section 3 of the Act of 1963;

“ the river ” means the river Derwent;

“ the River Authority ” means the Cumberland River
Authority;

“ the Secretary of State ” means the Secretary of State for
the Environment;

“ the Third Schedule ” means the Third Schedule to the
Water Act, 1945; 1945 c. 42.

PART I
—cont.

“ the tribunal ” means the Lands Tribunal;

“ watercourse ” includes all rivers, streams, ditches, drains, cuts, culverts, dikes, sluices, sewers and passages through which water flows except mains (within the meaning of the Third Schedule) and local authority sewers.

(2) (a) Unless the subject or context otherwise requires any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

(b) This Act shall be construed as if the words “ or thereabouts ” were inserted after each distance mentioned in section 5 (Power to construct works) and section 26 (Discharge of water into the river) of this Act.

(3) Unless the subject or context otherwise requires, references in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment, including this Act.

Application
and
modification
of
enactments.

4.—(1) (a) For the purposes of this Act the provisions of the Third Schedule which are specified in column (1) of the schedule to this Act shall, subject to the modifications set out in column (2) thereof, apply to the River Authority and the authorised works.

(b) Subject as aforesaid the said provisions are hereby incorporated with this Act and, as so incorporated, shall have effect as if for references therein to undertakers there were substituted references to the River Authority.

1946 c. 49.

(2) (a) Part I of the Act of 1965 (except section 4, subsection (5) of section 24, section 27, and sub-paragraph (3) of paragraph 3 of Schedule 3 thereof), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act, 1946 applies, and as if this Act were a compulsory purchase order under the said Act of 1946.

(b) In subsection (1) of section 11 of the Act of 1965 as so applied, for the words “fourteen days” there shall be substituted the words “ three months ”.

1845 c. 18.

(c) The Lands Clauses Consolidation Act, 1845, shall not apply to the acquisition of land under this Act.

PART II

WORKS

5.—(1) Subject to the provisions of this Act the River Authority may in the lines or situations and within the limits of deviation shown on the deposited plans and according to the levels shown upon the deposited sections, make and maintain in the rural district of Cockermouth in the administrative county of Cumberland the works hereinafter described together with all necessary works and conveniences connected therewith, namely:—

Power to
construct
works.

Work No. 1 A weir across the river (incorporating an intake and outfall) partly in the parish of Bassenthwaite and partly in the parish of Setmurthy 129 yards upstream of the eastern extremity of the pier supporting Ouse Bridge.

Work No. 2 A channel in the bed of the river and of the lake partly in the parish of Bassenthwaite and partly in the parish of Setmurthy commencing at Work No. 1 and terminating at a point 40 yards measured in an easterly direction from the point of commencement.

Work No. 3 A pumping station in the parish of Blindcrake in the enclosure numbered 184 on the 1/2500 Ordnance Survey Map (Edition of 1925) Cumberland Sheet XLVI.15.

Work No. 4 Lines of pipes partly in the parish of Bassenthwaite and partly in the parish of Blindcrake commencing at Work No. 1 and terminating at Work No. 3.

Work No. 5 An improvement of the outfall of Coal Beck in the parish of Blindcrake consisting of a realignment of the whole or portions of—

(a) so much of the bed and banks of the Coal Beck as lies between its confluence with the river and a point on the Coal Beck 30 yards from the point of confluence measured along the centre line of the Coal Beck; and

(b) so much of the north bank of the river as lies between its confluence with the Coal Beck and Ouse Bridge and of the bed of the river adjacent thereto.

(2) The River Authority may from time to time renew and alter any of the works described in subsection (1) of this section.

6.—(1) Notwithstanding anything in this Act or in section 2 of the Third Schedule as incorporated with this Act or shown on the deposited plans Work No. 1 shall not be constructed or altered so that the level of the crest of the weir is above 224 feet above Ordnance Datum (Newlyn).

Construction
and removal
of Work
No. 1.

PART II
—cont.

(2) As soon as is reasonably practicable after 31st December, 1980, and in any event not later than 30th June, 1981, the River Authority shall remove so much of Work No. 1 as is necessary to restore—

- (a) the level of the bed of the river to the level it was immediately before the construction of that work; and
- (b) the uninterrupted flow of water from the lake as such flow existed immediately before such construction.

Subsidiary
powers.

7.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans, the River Authority in connection with the authorised works and for the purposes thereof may—

- (a) make junctions and communications between any of those works and any watercourses and any existing streets, roads, droves, ways, bridges, towing paths and footpaths;
- (b) make, provide and maintain all necessary and convenient walls, banks, embankments, piling, fences, facilities for watering cattle and other animals, culverts, drains, intakes, syphons, watercourses, weirs, sluices, wharves, mattresses, pitching, roads, droves, bridges, towing paths and footpaths, and all such mains, pipes, cables, wires, pumps, machinery, works and appliances as may be required;
- (c) dispose of spoil or other material excavated in the execution of the works authorised by this Act;
- (d) execute any works for the protection of any adjoining lands, buildings or structures;
- (e) remove, alter, divert or stop up any drain, sewer or watercourse, the River Authority providing a proper substitute before interrupting the flow of sewage in any drain or sewer or water in any watercourse;
- (f) fell, lop or cut and remove any tree, bush, shrub or other vegetation; and
- (g) alter any mains, pipes, wires and other works and apparatus for conveying or transmitting water, gas, electricity or petroleum (as defined in the Petroleum (Consolidation) Act, 1928).

1928 c. 32.

(2) In the exercise of the powers conferred by this section, the River Authority shall cause as little detriment and inconvenience to any person as circumstances admit.

Temporary
stoppage of
watercourses,
roads,
footpaths and
bridleways.

8.—(1) The River Authority during and for the purpose of the execution of any of the authorised works, may temporarily stop up and divert and interfere with any watercourse or any road,

bridleway or footpath and may for any reasonable time divert the traffic from any such road, bridleway or footpath and prevent all persons other than those bona fide going to or from any land, house or building abutting the road, bridleway or footpath from passing along and using the same.

PART II
—cont.

(2) Reasonable access shall be provided for foot passengers, with or without animals bona fide going to or from any such land, house or building.

(3) The powers of this section shall not be exercised with reference to any road without the consent of the highway authority having powers in relation thereto and, in the case of a road which is vested in any person other than the highway authority, that person, and any such consent may be given subject to such reasonable conditions (other than a monetary payment) as the highway authority or other person may think fit to impose but shall not be unreasonably withheld, and any question whether any such consent is or is not unreasonably withheld or whether any conditions are or are not reasonable shall be determined by the Secretary of State.

(4) The powers of subsection (1) of this section shall not be exercised in respect of a road upon which a service of stage carriages or express carriages is operated unless not less than forty-eight hours' previous notice is given to the traffic commissioners and to the holders of the road service licence under which that service is authorised.

9. The River Authority for the purposes of the authorised works may enter upon and use so much of the bed or bank of the lake or any watercourse as is within the limits of deviation of any of the said works shown on the deposited plans and as may be required for those purposes, and they may also for the purposes of executing and placing temporary works and conveniences in connection with such works occupy and use temporarily so much of such bed and bank within the said limits as may be required for those purposes or any of them.

Power to
use bed and
banks of the
lake or
watercourses.

10. The River Authority may from time to time deepen, dredge, scour and improve and remove obstructions from the bed, fore-shore and banks of so much of the river as lies between Work No. 1 and Ouse Bridge.

Power to
dredge.

11. Section 19 of the Salmon and Freshwater Fisheries Act, 1923, shall apply in relation to Work No. 1 as if in subsection (1) thereof for the words from "within such reasonable period" to "the Minister" there were substituted the words "within a reasonable period".

Application of
section 19 of
Salmon and
Freshwater
Fisheries Act,
1923.

1923 c. 16.

PART II
—cont.For
preservation
of scenery and
amenities.

12.—(1) For the purpose of discharging the duty imposed upon them by section 101 of the Act of 1963, but without prejudice to the generality thereof, the River Authority shall appoint a landscape consultant whom the River Authority shall consult on questions affecting amenity in or in connection with or arising out of the carrying out or doing under the powers of Part II of this Act of any operations or things in connection with the works to which this section applies, including the following:—

- (i) the disposal of spoil or waste material;
- (ii) the reinstatement or restoration of land;
- (iii) the planting and felling of trees and the planting of bushes and other plants.

(2) For the purpose aforesaid the River Authority shall—

1962 c. 38.

(a) without prejudice to anything in the Town and Country Planning Act, 1962, submit to the Lake District Planning Board for their approval (which shall not be unreasonably withheld)—

(i) plans, sections and particulars relating to the situation, design and external appearance of any aqueduct, building, weir, channel, wall, embankment, road or fence to be constructed in connection with any of the works to which this section applies; and

(ii) particulars of the proposed manner and method of disposing of any spoil or waste material resulting from the carrying out of any operation in connection with such works;

(b) send to the Lake District Planning Board copies of any recommendations of the said landscape consultant made to them with regard to any of the matters referred to in paragraph (a) of this subsection, and shall comply with such reasonable requirements as the Lake District Planning Board shall make—

(i) for the purpose of rendering any such aqueduct, building, weir, wall, embankment, road, fence, spoil or waste material as inconspicuous as possible; or

(ii) with regard to the disposal of any such spoil or waste material;

including, as respects any purpose mentioned in the foregoing sub-paragraph (b) (i), requirements as to the laying of turf, the sowing of grass seed and the planting of trees, bushes or plants.

(3) Within six months after the completion of any of the works to which this section applies, or such longer period as the Lake District Planning Board may agree, the River Authority shall

remove or, to the reasonable satisfaction of the Lake District Planning Board, demolish or otherwise dispose of all temporary buildings and structures erected for the purposes of or in connection with the construction of such works which are not required for the purposes of or in connection with the construction of other such works or for the operation or maintenance of the works in respect of which they were erected, and shall remove all surplus materials, plant, machinery and appliances provided or erected in connection therewith which are not so required and shall so far as is reasonably practicable to the like satisfaction restore and make good the surface of the ground on which any such temporary buildings and structures, or any such surplus materials, plant, machinery and appliances as aforesaid have been placed.

PART II
—cont.

(4) This section applies to the authorised works other than Work No. 5, and in this section the expression “ spoil and waste material ” includes any rock, sand, mud and other materials removed by the River Authority under the powers of this Act.

(5) If any question shall arise as to the reasonableness of the action of the Lake District Planning Board in withholding any approval, or the reasonableness of any requirements which the Lake District Planning Board may make, under subsection (2) of this section, the question shall be referred to and determined by the Secretary of State whose decision shall be final.

PART III

LANDS

13.—(1) Subject to the provisions of this Act the River Power to Authority may enter upon, take and use such of the lands acquire land. delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the authorised works or for the purposes of obtaining access thereto, obtaining materials for the construction thereof, or depositing spoil or other material excavated during the construction thereof or in exercise of the powers of section 10 (Power to dredge) of this Act or otherwise for the purposes of this Act or other purposes connected therewith.

(2) (a) The powers of the River Authority for the compulsory acquisition of lands under this section shall not be exercised after 31st December, 1973.

(b) The power to acquire compulsorily any land shall for the purposes of this subsection be deemed to have been exercised if

PART III
—cont.

before 31st December, 1973, notice to treat has been served in respect of that land.

Correction of
errors in
deposited
plans and
book of
reference.

14.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the River Authority after giving not less than ten days' notice to the owner, lessee and occupier of the land in question may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, and with the clerk of the administrative county of Cumberland and a copy thereof shall be deposited with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plans (or so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the standing orders of the Houses of Parliament or who has the custody of any copy so deposited, and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the River Authority to take the land and execute the works in accordance with the certificate.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

Acquisition
of part only
of certain
properties.

15.—(1) Where a copy of this section is endorsed on, or annexed to, a notice to treat served under the Act of 1965, as applied by this Act, the following provisions of this section shall apply to the land subject to the notice instead of subsection (1) of section 8 of that Act.

(2) Where the land subject to the notice is part only of a house, building or factory, or part only of land consisting of a house, together with any park or garden belonging thereto then, if the person on whom the notice is served, within twenty-one days after the day on which the notice is served on him, serves on the River Authority a counter-notice objecting to the sale of the part and stating that he is willing and able to sell the whole (hereinafter in this section referred to as "the land subject to the

counter-notice”), the question whether he shall be required to sell the part shall, unless the River Authority agree to take the land subject to the counter-notice, be referred to the tribunal.

PART III
—cont.

(3) If the said person does not serve such a counter-notice as aforesaid within twenty-one days after the day on which the notice to treat is served on him, or if on such a reference to the tribunal the tribunal determine that the part subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice, or, in the case of part of land consisting of a house together with a park or garden belonging thereto, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the said person shall be required to sell the part.

(4) If on such a reference to the tribunal the tribunal determine that part only of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice, or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the notice to treat shall be deemed to be a notice to treat for that part.

(5) If on such a reference to the tribunal the tribunal determine that the land subject to the notice to treat cannot be taken without material detriment to the remainder of the land subject to the counter-notice but that the material detriment is confined to a part of the land subject to the counter-notice, the notice to treat shall be deemed to be a notice to treat for the land to which the material detriment is confined in addition to the land already subject to the notice, whether or not the additional land is land which the River Authority are authorised to acquire compulsorily under this Act.

(6) If the River Authority agree to take the land subject to the counter-notice, or if the tribunal determine that—

- (a) none of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house; and
- (b) the material detriment is not confined to a part of the land subject to the counter-notice;

the notice to treat shall be deemed to be a notice to treat for the land subject to the counter-notice whether or not the whole of that land is land which the River Authority are authorised to acquire compulsorily under this Act.

PART III
—cont.

(7) In any case where, by virtue of a determination by the tribunal under subsection (4), (5) or (6) of this section, a notice to treat is deemed to be a notice to treat for part of the land specified in the notice or for more land than is specified in the notice the River Authority may, within six weeks after the tribunal make their determination, withdraw the notice to treat, and if they do so shall pay to the said person compensation for any loss or expense occasioned to him by the giving and withdrawal of the notice, to be determined in default of agreement by the tribunal.

(8) Where a person is under this section required to sell part only of a house, building or factory, or of land consisting of a house together with any park or garden belonging thereto, the River Authority shall pay him compensation for any loss sustained by him due to the severance of that part in addition to the value of his interest therein.

Power to
acquire
easements
only.

16.—(1) The River Authority may, instead of acquiring any land which they are authorised to acquire compulsorily under this Act, acquire compulsorily such easements and rights over or in the land as they may require for the purpose of constructing, using, maintaining, renewing or removing the authorised works or for the purpose of obtaining access to those works or for the purpose of doing any other thing necessary in connection with those works.

(2) Accordingly the River Authority may give notice to treat in respect of any such easement or right describing the nature thereof and “land” in Part I of the Act of 1965, as applied by this Act, includes such easements and rights as aforesaid.

(3) Where the River Authority have acquired an easement or right only over or in any land under this section—

- (a) they shall not be required or, except by agreement or during the execution of the authorised works, entitled to fence off or sever that land from the adjoining land;
- (b) the owner or occupier of the land for the time being shall, subject to the easement or right, have the same right to use the land as if this section had not been enacted.

(4) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the River Authority to acquire the land, the River Authority shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of

the house; and, if the tribunal does not so determine, the River Authority may acquire the land compulsorily notwithstanding that the period mentioned in subsection (2) of section 13 (Power to acquire land) of this Act has expired, but not later than one year after the determination of the tribunal:

PART III
—cont.

Provided that nothing in this subsection shall apply to land forming part of a street.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section.

17. In determining a question with respect to compensation claimed in consequence of the compulsory acquisition of land under this Act, the tribunal shall not take into account any interest in land, or any enhancement of the value of any interest in land, by reason of any building erected, works executed, or improvement or alteration made, whether on the land acquired or on any other land with which the claimant is, or was, at the time of the erecting, executing or making of the building, works, improvement or alteration, directly or indirectly concerned if the tribunal is satisfied that the creation of the interest, the erection of the building, the execution of the works or the making of the improvement or alteration (as the case may be) was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

Disregard of recent improvements and interests.

18.—(1) Any person empowered by the Act of 1965, as applied by this Act, to sell and convey or release lands may, if he thinks fit, subject to the provisions of the Act of 1965, grant to the River Authority any easement or right required for the purposes of this Act over or in the lands, not being an easement or right of water in which some person other than the grantor has an interest.

Grant of easements by persons under disability.

(2) The provisions of the Act of 1965 with respect to lands and rentcharges, so far as they are applicable, shall extend and apply to any such grant and to any such easement or right as aforesaid.

19. The powers of the River Authority to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners and occupiers of land which may be acquired under this Act.

Provision of substituted sites.

20.—(1) The River Authority may enter into and carry into effect agreements with any person being the owner of, or interested in, any land adjoining any portion of the authorised works, or of

Agreements with adjoining owners.

PART III
—*cont.*

land which may be acquired by the River Authority under this Act, with respect to the sale by the River Authority to him (subject to such reservations, restrictions or other provisions as to the River Authority seem fit) of any land not required for the said works.

(2) The River Authority may accept as satisfaction for the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the River Authority for the purposes of this Act or any easement or right so required.

**Power to
reinstate
owners or
occupiers of
property.**

21.—(1) The River Authority may enter into and carry into effect, an agreement or arrangement with the owner or occupier of any land acquired or to be acquired under this Act with respect to his reinstatement.

(2) Any such agreement may provide for the exchange of land; and for that purpose the River Authority may pay or receive money for equality of exchange.

PART IV

ABSTRACTIONS AND DISCHARGES

**Abstraction
from the lake.**

22.—(1) The River Authority may by means of the intake incorporated in Work No. 1 abstract from the lake for the purpose of maintaining and augmenting the flow of the river a quantity of water not exceeding 55,000,000 gallons in any one day:

Provided that the River Authority shall not so abstract at any time when the level of water in the lake is at or below 222 feet above Ordnance Datum (Newlyn).

(2) The quantity of water so abstracted and the level of the lake shall be measured by approved gauges in approved positions.

(3) In this section—

“approved” means approved by the Water Resources Board;

“day” means a period of twenty-four hours reckoned from 9 o'clock in the morning;

“gauge” means an automatically recording measuring gauge, weir or other apparatus for measuring the flow or depth of water of approved design.

**Abstraction
to be
licensed
under Act
of 1963.**

23.—(1) The provisions of the last foregoing section shall be deemed to be included in a licence under the Act of 1963 granted by the Secretary of State to the River Authority.

(2) The said licence shall be deemed to have been granted on the passing of this Act and unless previously revoked shall remain in force until 31st December, 1980, when it shall be deemed to have been revoked.

PART IV
—cont.

(3) Except as may be otherwise provided by this Act the provisions of the Act of 1963 shall apply to the said licence as they apply to a licence granted under that Act.

24.—(1) Work No. 1 shall be deemed to have been constructed under a licence under section 36 of the Act of 1963 granted by the Secretary of State to the River Authority.

Work No. 1
deemed to be
constructed
under an
impounding
licence.

(2) The said licence shall be deemed to have been granted on the passing of this Act and unless previously revoked shall remain in force until 31st December, 1980, when it shall be deemed to have been revoked.

(3) Except as may be otherwise provided by this Act the provisions of the Act of 1963 relating to licences granted under section 36 of that Act shall apply to the licence deemed by the foregoing subsection to have been granted under that section as they apply to those so granted.

25. The River Authority shall not be liable to pay any charge levied under the charging scheme for the time being in force within their area in respect of the licence to abstract water from the lake deemed by section 23 (Abstraction to be licensed under Act of 1963) of this Act to be granted to them under the Act of 1963.

River
Authority
to be
exempt from
charges under
Act of 1963.

26.—(1) Subject to the provisions of section 22 (Abstraction from the lake) of this Act, the River Authority from or by means of the outfall incorporated in Work No. 1—

Discharge of
water into the
river.

(a) shall discharge into the river a quantity of water in a regular and continuous flow at such a rate as will ensure that the rate of flow in the river below Ouse Bridge as measured by the existing gauge of the River Authority 135 yards downstream of the western extremity of the pier supporting that bridge is not less than the rate of 35,000,000 gallons in any day;

(b) may discharge into the river such greater quantity of water as they think fit.

(2) This section shall cease to have effect as from 31st December, 1980.

PART IV
—cont.
Compensation
for damage due
to altering
level of lake
or river.

27.—(1) In any case where an owner or occupier of land comprised in the bed or banks of the lake or river or adjacent thereto has—

- (a) incurred expenditure in carrying out works which would be rendered necessary if, but only if, in the exercise by the River Authority of the powers of section 22 (Abstraction from the lake) of this Act the level of the water in the lake was lowered to 222 feet above Ordnance Datum (Newlyn); or
- (b) otherwise sustained loss or damage which is directly attributable to the exercise of those powers;

the River Authority shall pay to him compensation in respect of that expenditure, loss or damage.

(2) In any case where the drainage of any land is affected by the raising of the level of the lake as a result of the construction of Work No. 1, the Authority shall pay to the owner or occupier of the land compensation in respect of any loss or damage he may sustain which is directly attributable to the construction of that work.

(3) Subsections (5) to (7) of section 46 of the Act of 1963 shall apply in relation to compensation payable under this section as they apply in relation to compensation payable under that section.

PART V

FINANCE

Power to
borrow.

28.—(1) The River Authority may borrow, without the consent of any sanctioning authority, for any of the purposes specified in the first column of the following table, the sum specified in relation thereto in the second column of that table.

(1) Purposes for which money may be borrowed	(2) Amount	(3) Maximum period for repayment of loan
(a) The purchase of lands, easements and rights for the authorised works and payment of compensation	The sum required	Ten years.
(b) The construction of the authorised works and the provision of pumping plant	£127,000	Ten years.
(c) The payment of the sums payable by the River Authority under section 38 (Costs of Act) of this Act	The sum required	Ten years.

(2) Every sum borrowed under subsection (1) of this section shall be repaid within such period from the date of borrowing as the River Authority without the consent of any sanctioning authority may determine, not exceeding the period specified in relation thereto in the third column of the said table.

PART V
—*cont.*

(3) The River Authority may also with the sanction of the Secretary of State borrow such further sums as may be necessary for any of the purposes of this Act, and any sum borrowed under the powers of this subsection shall be repaid within such period from the date of borrowing as the River Authority with the consent of the Secretary of State may determine.

(4) It shall not be lawful to exercise the power of borrowing money conferred by this section otherwise than in compliance with the provisions of any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946. 1946 c. 58.

29. The means by which the River Authority may raise money which they are authorised to borrow shall include the issue of stock or the issue of bonds and accordingly subsection (5) of section 92 of the Act of 1963 shall have effect as if—

Power to
borrow by
issue of stock
or bonds.

- (a) paragraph (b) of subsection (1) of section 196 and section 204 of the Local Government Act, 1933, were included among the provisions of that Act applicable to the borrowing of money under subsection (2) of the said section 92 and the said subsection (2) shall be construed accordingly; 1933 c. 51.
- (b) section 7 of and Schedule 1 to the Local Government (Financial Provisions) Act, 1963, were applicable to the borrowing of money under the said subsection (2); and 1963 c. 46.
- (c) money borrowed under this Act was borrowed under the said subsection (2).

30. The provisions of section 55 of the Local Government Act, 1958, shall apply to the River Authority as if they were the council of a county.

Consolidated
loans fund.
1958 c. 55.

31.—(1) The River Authority shall in relation to the borrowing of money for the purposes of this Act have the powers and be subject to the restrictions and duties conferred or imposed on local authorities by the provisions of the Local Government (Financial Provisions) Act, 1963, mentioned in subsection (2) of this section and those provisions shall apply to the River Authority with any necessary modifications as if they were a local authority other than a parish council.

Application
of provisions
of Local
Government
(Financial
Provisions)
Act, 1963, to
borrowing
for purposes
of Act.

PART V
—cont.
1963 c. 46.

(2) The provisions of the Local Government (Financial Provisions) Act, 1963, referred to in subsection (1) of this section are subsections (1), (3), (4) and (7) of section 8 and subsections (1) to (4) of section 10.

(3) Subsection (6) of section 92 of the Act of 1963 shall not apply to money borrowed by the River Authority for the purposes of this Act.

PART VI

SPECIAL PROVISIONS

Application
and extension
of Act of
1963.

32.—(1) It is hereby declared that the authorised works, being works to be constructed by the River Authority in the performance of their new functions, are engineering or building operations and that in constructing those works and in the exercise of the other powers of this Act the River Authority shall have, in addition to the powers of this Act, all such powers as are conferred on them by the Act of 1963 in relation to engineering or building operations.

(2) The following provisions of the Act of 1963 so far as they are applicable for the purpose shall extend and apply to the exercise by the River Authority of the powers of this Act as if references in those provisions to the Act of 1963 were references to this Act:—

Section 101 (Preservation of amenity and public rights of access);

Section 120 (Service of documents);

Section 130 (Provisions as to telegraphic lines).

(3) Sections 19, 20 and 22 of the Third Schedule as applied generally to the River Authority by subsection (3) of section 69 of the Act of 1963 shall have effect as if the expression “main” included—

(a) any pipe used by the river authority in question in the performance of any of their new functions; and

(b) discharge pipes or drains.

Discharge of
water into
streams.

33.—(1) For the purpose of constructing, altering, enlarging, repairing, cleaning, examining or operating any works carried out in the performance of their new functions, the River Authority may cause the water in any such work to be discharged into any available watercourse, and for that purpose may lay and maintain all necessary discharge pipes and apparatus.

(2) In the exercise of the powers conferred by this section the River Authority shall do as little damage as may be and shall pay compensation to all persons for any damage sustained by them or liability to which they may become subject by reason of the exercise of those powers and, for the purposes of this subsection, any extra expenditure which it becomes reasonably necessary for any public authority (including a statutory undertaker) to incur for the purpose of properly discharging their statutory functions, shall be deemed to be damage sustained by them. Any question as to the amount of the compensation to be so paid shall be determined by arbitration.

(3) (a) The River Authority shall take all necessary steps to secure that any water discharged by them under this section shall be as free as may be reasonably practicable from mud and silt, from solid, polluting, offensive or injurious matters and from any matter prejudicial to fish or spawn, or to spawning beds or food of fish, and, if they fail to do so, shall be guilty of an offence.

(b) Sections 46 and 47 of the Water Act, 1945, shall apply to 1945 c. 42. any such offence as if it were an offence against that Act.

34.—(1) Where the River Authority have under consideration a proposal that they should acquire any land for any purpose in connection with the performance of their new functions, the Secretary of State may, on the application of the River Authority, authorise them to carry out on such land experimental borings or other works for the purpose of ascertaining the nature of the underground strata (as defined in section 135 of the Act of 1963) or the presence of water therein or the quantity or quality of such water, and to reinstate the land after carrying out any such works: Power to carry out trial borings, etc.

Provided that notice of any such application shall be given by the River Authority to—

- (a) the owner and occupier of the land and the Secretary of State shall before giving his authority consider any representations made to him by such owner or occupier within twenty-eight days after the receipt of the notice;
- (b) the National Coal Board in any case where their interests are likely to be affected by any such borings or other works;
- (c) the British Railways Board in any case where it is proposed to carry out any such borings or other works on operational land of the Board;
- (d) any other statutory undertakers within whose limits of supply it is proposed to carry out such borings or other works specifying the situation of the land.

PART VI
—cont.

(2) The National Coal Board or any statutory undertakers on whom notice is required to be served in accordance with the last preceding subsection may object to the carrying out of any such borings or other works on the ground that it would be seriously detrimental to the carrying on of their undertaking, and in that event the borings or other works shall not be carried out except with the authority of the appropriate Minister.

(3) (a) Paragraph (b) of subsection (1) of section 111 of the Act of 1963 in its application to the River Authority shall have effect as if the power thereby conferred to enter upon and survey land included a power to exercise the powers conferred by subsection (1) of this section.

(b) Section 112 of the Act of 1963 in its application to the River Authority shall have effect as if references therein to section 111 of that Act were references to that section as extended by paragraph (a) of this subsection.

(4) In this section—

“ appropriate Minister ” means—

(a) in relation to the National Coal Board or to statutory undertakers carrying on an undertaking for the supply of electricity, gas or hydraulic power, the Secretary of State for Trade and Industry;

(b) in relation to any other statutory undertakers, the Secretary of State;

“ operational land ” and “ statutory undertakers ” have the same respective meanings as in the Town and Country Planning Act, 1962.

1962 c. 38.

Power to
require
information
as to
ownership
of land.

35.—(1) The River Authority may for the purpose of enabling them to perform any of their functions, require—

(a) the occupier and any person having an interest in any land within or without their area, and any person who either directly or indirectly receives rent in respect of such land, to state in writing the nature of his own interest therein, and the name and address of any other person known to him as having an interest in that land, whether as freeholder, mortgagee, lessee or otherwise, or the name and address of any person known to him to receive either directly or indirectly the rent in respect of that land; and

(b) any person who has sold or otherwise disposed of, leased or let any land within or without their area to

state in writing the name and address of the person to whom he has sold or otherwise disposed of, leased or let that land.

PART VI
—cont.

(2) Any person who, having been required by the River Authority in pursuance of this section to give to them any information, fails to give that information or knowingly makes any misstatement in respect thereof, shall be liable to a fine not exceeding ten pounds.

(3) For the purposes of this section “interest” includes any legal estate or interest in land or in any rentcharge issuing out of land.

36.—(1) Where it appears to the River Authority that water in any underground strata in their area has been or is likely to be polluted they may carry out such operations as they consider necessary or expedient—

Power to take
action in case
of pollution of
underground
water.

(a) for removing the matter causing or likely to cause the pollution and for disposing of it in such manner as the River Authority consider appropriate; and

(b) for preventing, remedying or mitigating the pollution of such water :

Provided that in the exercise of the powers conferred by this section the River Authority shall not—

(a) without the consent of the National Coal Board enter upon any premises used by that Board for colliery production activities (as defined in paragraph 2 of Part I of the First Schedule to the Coal Industry Nationalisation Act, 1946, but disregarding sub-paragraph (2) of paragraph 22 of that schedule);

(b) without the consent of the owner (as defined in section 181 of the Mines and Quarries Act, 1954), enter upon any tip (within the meaning of subsection (1) of section 2 of the Mines and Quarries (Tips) Act, 1969), to which Part I of that Act applies.

(2) Subsection (5) of section 3 of the Act of 1963 shall apply in relation to the powers conferred on the River Authority by this section as if they had been included among the functions of the Cumberland River Board, transferred to the river authority in question by section 5 of that Act; and those powers shall be included among the transferred functions of the River Authority accordingly.

(3) In paragraph (a) of subsection (2) of section 135 of the Act of 1963 the reference to functions relating to river pollution includes in relation to the River Authority the powers conferred on them by this section.

PART VI
—cont.

(4) Nothing in this section shall be construed as derogating from any duty of the River Authority to enforce the provisions of the Rivers (Prevention of Pollution) Acts, 1951 to 1961, in their area.

PART VII

MISCELLANEOUS AND GENERAL

Saving for
Town and
Country
Planning Acts.
1962 c. 38.

37.—(1) Section 220 of the Town and Country Planning Act, 1962, shall apply to this Act as if it had been passed during the session of the 10 & 11 Geo. 6; and accordingly the Town and Country Planning Acts, 1962 to 1968, and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

(2) (a) In their application to development authorised by this Act, article 3 of, and class XII in Schedule 1 to, the Town and Country Planning General Development Order, 1963, shall have effect as if the authority to develop given by this Act in respect of Work No. 1 were limited to such development begun within five years from 31st December, 1970.

(b) In this subsection the reference to article 3 of, and class XII in, Schedule 1 to the Town and Country Planning General Development Order, 1963, includes a reference to corresponding provisions of any general order superseding that order made under section 14 of the Town and Country Planning Act, 1962, or any corresponding provision of an Act repealing that section.

(3) Such of the works authorised by subsection (1) of section 7 (Subsidiary powers) of this Act as are not carried out within twelve months of the completion of the authorised works shall not be deemed for the purposes of any development order made under section 14 of the Town and Country Planning Act, 1962, to be development authorised by any local or private Act of Parliament which designates specifically both the nature of the development thereby authorised and the land upon which it may be carried out.

Costs of Act.

38. The costs, charges and expenses preliminary to, and of and incidental to, the applying for and the preparing, obtaining and passing of this Act shall be paid by the River Authority out of moneys to be borrowed for that purpose or out of any moneys in their hands.

SCHEDULE

Section 4.

PROVISIONS OF THE THIRD SCHEDULE APPLIED

Provisions applied (1)	Modifications (2)
Section 2 (Permissible limits of deviation)	For the words " the plans submitted to the Minister " there shall be substituted the words " the deposited plans " and for the words " the said plans " wherever they occur there shall be substituted the words " the deposited sections ".
Section 5 (Power of undertakers to lay or erect telephone wires &c.)	For the words " the works " there shall be substituted the words " the authorised works " and for the words " the provisions of the special Act relating to the breaking open of streets by the undertakers " there shall be substituted the words " Section 22 of the Third Schedule as applied to the River Authority by subsection (3) of section 69 of the Act of 1963 ".
Section 6 (Penalty for obstruction of Works)	—
Section 83 (Penalty for obstructing execution of special Act)	—
Section 85 (Summary proceedings for offences)	—
Section 91 (Mode of reference to arbitration)	—
Section 94 (Copies of special Act to be kept by undertakers in their office, and deposited with certain officers)	—

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